TENTATIVE RULINGS

DEPARTMENT C33

Judge Sandy N. Leal

July 30, 2026 at 10:00 AM

Civil Court Reporters: The Court does not provide court reporters for law and motion hearings. Please see the Court's website for rules and procedures for court reporters obtained by the Parties.

Tentative rulings: The Court endeavors to post tentative rulings on the Court's website in the morning, prior to the hearing. However, ongoing proceedings such as jury trials may prevent posting by that time. Tentative rulings may not be posted in every case. Please do not call the Department for tentative rulings if tentative rulings have not been posted. The Court will not entertain a request to continue a hearing or the filing of further documents once a tentative ruling has been posted.

Submitting on tentative rulings: If all counsel intend to submit on the tentative ruling and do not desire oral argument, please advise the Courtroom Clerk or Courtroom Attendant by calling (657) 622-5233. Please do not call the Department unless all parties submit on the tentative ruling. If all sides submit on the tentative ruling and so advise the Court, the tentative ruling shall become the Court's final ruling and the prevailing party shall give notice of the ruling and prepare an order for the Court's signature if appropriate under Cal. R. Ct. 3.1312.

Non-appearances: If nobody appears for the hearing and the Court has not been notified that all parties submit on the tentative ruling, the Court shall determine whether the matter is taken off calendar or the tentative ruling becomes the final ruling. The Court also might make a different order at the hearing. (*Lewis v. Fletcher Jones Motor Cars, Inc.*, 205 Cal.App.4th 436, 442, fn. 1 (2012.))

Appearances: Department C33 conducts non-evidentiary proceedings, such as law and motion hearings, remotely by Zoom videoconference pursuant to Code of Civil Procedure section 367.75 and Orange County Local Rule 375. Any party or attorney, however, may appear in person by coming to Department C33 at the Central Justice Center, located at 700 Civic Center Drive West in Santa Ana, California.

All counsel and self-represented parties appearing in-person must check in with the courtroom clerk or courtroom attendant before the designated hearing time. All counsel and self-represented parties appearing remotely must check-in online through the court's civil video appearance website at https://www.occourts.org/media-relations/civil.html before the designated hearing time. Once the online check-in is completed, participants will be prompted to join the courtroom's Zoom hearing session. Participants will initially be directed to a virtual waiting room pending the start of their specific video hearing. Check-in instructions and instructional video are available at https://www.occourts.org/media-relations/aci.html. The Court's "Appearance Procedures and Information--Civil Unlimited and Complex" and "Guidelines for Remote Appearances" also are available at https://www.occourts.org/media-relations.aci.html. Those procedures and guidelines will be strictly enforced.

Public Access: The courtroom remains open for all evidentiary and non-evidentiary proceedings. Members of the media or public may obtain access to law and motion hearings in this Department by either coming to the Department at the designated hearing time or contacting the Courtroom Clerk at (657) 622-5233 to obtain login information. For remote appearances by the media or public, please contact the Courtroom Clerk 24 hours in advance so as not to interrupt the hearings.

No filming, broadcasting, photography, or electronic recording is permitted of the video session pursuant to California Rules of Court, rule 1.150 and Orange County Superior Court rule 180.

#	Case Name	Tentative
1	***24-01431292*** ***Arroyo vs. Swift Debt Relief, Inc.***	**1) Motion to Compel Production** **2) Motion to Compel Production** **MOTION NO. 1:** Plaintiff Brenda Arroyo's motion to compel defendant Mark Photoglou to provide supplemental responses and all documents responsive to Plaintiff's Requests for Production, Set One, Request Nos. 2-11 is CONTINUED to _______. The rule requiring a good faith effort to meet and confer about discovery disputes "is designed to encourage the parties to work out their differences informally so as to avoid the necessity for a formal order . . . [t]his, in turn, will lessen the burden on the court and reduce the unnecessary expenditure of resources by litigants through promotion of informal, extrajudicial resolution of discovery disputes." (*Stewart v. Colonial Western Agency, Inc.* (2001) 87 Cal.App.4th 1006, 1016.) "A reasonable and good-faith attempt at informal resolution entails something more than bickering . . . Rather, the law requires that counsel attempt to talk the matter over, compare their views, consult, and deliberate." (*Townsend v. Superior Court* (1998) 61 Cal. App. 4th 1431, 1439.) In its opposition, Defendant states "[t]he parties can resolve their disputes if Plaintiff's counsel were to work with Defendants' counsel to reach an agreement about the scope of the Requests and definition." (Opp., 4:22-24.) Defendant's counsel states during a meet and confer call, he explained to Plaintiff's counsel that he believed the requests were improperly overbroad and that it made more sense for the parties to stipulate to certain definitions or to certain keywords and/or phrases that could assist with the identification of responsive documents. (Bozant Decl., ¶ 9.) Plaintiff's counsel refused to agree to any such compromise, and instead told Defendant's counsel that Defendants "should know" exactly what the requests mean based on the allegations in the complaint and the purportedly limited time period Plaintiff worked for Swift. (Bozant Decl., ¶ 9.) The court finds further conferences between the parties would be productive. Therefore, the parties are ordered to engage in additional attempts to meet and confer regarding the issues that remain in dispute, including a telephonic or in-person conference (not email). No later than 9 court days prior to the continued hearing, the parties are to file a Joint Statement which shall (1) describe the parties' attempts to meet and confer pursuant to this order, (2) identify each discovery request that remains in dispute, and (3) each party's position on the discovery request that remains in dispute. Plaintiff to give notice. **MOTION NO. 2:** Plaintiff Brenda Arroyo's motion to compel defendant Jason DeAngelo to provide supplemental response and all documents responsive to Plaintiff's Requests for Production, Set One, Request Nos. 3–11 is CONTINUED to _______.

		In its opposition, Defendant states "[t]he parties can resolve their disputes if Plaintiff's counsel were to work with DeAngelo's counsel to reach an agreement about the scope of the Requests and definition. Plaintiff's counsel's blatant refusal to make any concessions, as well as their personal attacks against DeAngelo, have thwarted the parties' meet and confer efforts." (Opp., 4:19-22.) The court finds further conferences between the parties would be productive. Therefore, the parties are ordered to engage in additional attempts to meet and confer regarding the issues that remain in dispute, including a telephonic or in-person conference (not email). No later than 9 court days prior to the continued hearing, the parties are to file a Joint Statement which shall (1) describe the parties' attempts to meet and confer pursuant to this order, (2) identify each discovery request that remains in dispute, and (3) each party's position on the discovery request that remains in dispute. Plaintiff to give notice.
2	***21-01199592*** ***Burgos vs. Degiacomo***	**Motion for Equitable Relief** Plaintiff Glenda Burgos's Motion for Equitable Relief is DENIED. Plaintiff, in pro per, moves for an order granting equitable relief and restoration of her appellate rights based on extrinsic mistake alleging attorney abandonment. Plaintiff's prior counsel timely filed notices of appeal of this court's initial judgment and the amended judgement that added Defendant's fees and costs. (Dreyfuss Decl., ¶¶ 3-4; ROA 208, 246.) However, on 6/4/25 and 7/17/25, the appellate court issued a remittitur for each appeal after dismissing them for failure to file opening briefs. (Dreyfuss Decl., ¶¶ 9, 12, 15-16, Ex. 1; ROA 277, 278.) Plaintiff, in pro per, filed a motion to recall each remittitur, which Defendant opposed. (Dreyfuss Decl., ¶¶ 13, 17-20, 22-25, Exs. 3-6, 8-11.) The court of appeal denied each motion on 7/10/25 and on 8/7/25. (Dreyfuss Decl., ¶¶ 21, 26, Exs. 7, 12.) Plaintiff filed petitions for review with the California Supreme Court, which were denied on 7/16/25, 10/15/25. (Dreyfuss Decl. iso Motion for Attorney Fees on Appeal ¶¶ 6-7.) Plaintiff, in pro per, filed the instant motion on 12/23/25. However, this court does not have jurisdiction to grant the relief Plaintiff seeks. Plaintiff's recourse was to file the appropriate motion(s) with the appellate court, which she did in part. More specifically, since Plaintiff sought relief after dismissal and issuance of the remittiturs, her final recourse was to file a motion with the appellate court to vacate the dismissals and permit a cure of the default. (*In re Jacqueline H.* (1978) 21 Cal.3d 170, 179; *Sanders v. Warden* (1951) 106 Cal.App.2d 707, 708; see also Eisenberg et al., Cal. Practice Guide: Civil Appeals & Writs (The Rutter Group) ¶¶ 5:50-5:51, p. 5-B.) Further, since issuance of the remittiturs deprived the appellate court of further jurisdiction, the motion to vacate should have been

		accompanied by a motion to recall the remittitur so as to restore the appellate court's jurisdiction. (Eisenberg et al., Cal. Practice Guide: Civil Appeals & Writs (The Rutter Group) ¶¶ 5:51, 14:2, 14:34). Plaintiff failed to file motions to vacate the dismissals with the appellate court. However, she filed motions to recall the remittiturs, which asserted essentially the same grounds presented in the instant motion – her attorney failed to file the opening briefs resulting in dismissal "due to serious personal and mental health challenges"/ "mental illness, which rendered him unable to meet court deadlines" and Plaintiff had no knowledge of the dismissals. (See Dreyfuss Decl., Exs. 3, 8.) The California Supreme Court denied Plaintiff's petitions for review. It would not be appropriate or within this court's jurisdiction to review or reverse the appellate court's prior rulings. This court does not have jurisdiction to reinstate Plaintiff's appellate rights where the court of appeal already declined to do so on the same general basis she is reasserting here. Plaintiff does not cite any authority that would allow this court to grant her requested relief. The cases she cites concern appeals from trial court orders denying motions to set aside dismissals or defaults entered by the trial court. (See, e.g., *Daley v. Butte County* (1964) 227 Cal.App.2d 380 [reversing trial court's order denying § 473(b) motion to vacate trial court's judgment of dismissal for failure to prosecute holding that where consistent and long-continued inaction by counsel of records for plaintiff effectually deprived plaintiff of representation, ends of justice required that motion to vacate judgment of dismissal should have been granted with or without conditions, and its denial was an abuse of discretion]; *Rappleyea v. Campbell* (1994) 8 Cal.4th 975 [reversing appellate court's affirmance of trial court's order denying § 473(b) motion to set aside trial court's entry of default and default judgment holding denial was abuse of discretion as it should have been granted on equitable grounds].) They do not concern a trial court reviewing an appellate court's order dismissing the appellant's appeal. The motion is denied.
4	***25-01499896*** ***Exim Engineering, Inc. vs. Orange Courier Inc.***	**Motion to Be Relieved as Counsel of Record** The motion of attorney William Kersten from Kersten & Associates to be relieved as counsel of record for defendant, Orange Courier Inc. is CONTINUED to _______. California Rules of Court, Rule 3.1362, subdivision (d) requires that: "The notice of motion and motion, the declaration, and the proposed order must be served on the client and on all other parties who have appeared in the case." Although the declaration in support of the motion states client was served with the moving papers by mail, no proof of service was filed showing moving papers were served on client or on the other parties who have appeared in the case.

		Moving attorneys are to serve all moving papers in compliance with Rule 3.1362, subdivision (d) and file proof of service no later than 5 court days prior to the continued hearing. Moving attorney to give notice.
6	***26-01568888*** ***Howden US Services, LLC vs. Acrisure of California, LLC***	**Motion to Strike - Anti SLAPP** Defendants Acrisure of California, LLC; Acrisure, LLC; Acrisure of California Partner Group, LLC; and RSI Insurance Brokers, Inc.'s Special Motion to Strike is DENIED. Legal Standard A special motion to strike is authorized against SLAPP suits (Strategic Litigation Against Public Participation), i.e., lawsuits brought "primarily to chill the valid exercise of constitutional rights of freedom of speech and petition for the redress of grievances." (Code Civ. Proc., § 425.16, subd. (a).) A special motion to strike, or anti-SLAPP motion, may be used to strike allegations of protected activity, even if the motion does not defeat the entire "cause of action." (*Baral v. Schnitt* (2016) 1 Cal.5th 375, 385-390, disapproving *Mann v. Quality Old Time Service, Inc.* (2004) 120 Cal.App.4th 90 and its progeny). To prevail on the motion, the plaintiff's claim must (1) arise out of the defendant's protected speech or petitioning; and (2) lack even minimal merit. (*Navellier v. Sletten* (2002) 29 Cal.4th 82, 88-89.) Thus, in ruling on an anti-SLAPP motion, courts engages in a two-step process: "First, the defendant must establish that the challenged claim arises from activity protected by section 425.16. [Citation.] [Second,] [i]f the defendant makes the required showing, the burden shifts to the plaintiff to demonstrate the merit of the claim by establishing a probability of success." (*Baral, supra,* 1 Cal.5th at 384.) Merits **First Prong – Protected Activity** A claim may be struck pursuant to section 425.16 only "if the speech or petitioning activity itself is the wrong complained of, and not just evidence of liability or a step leading to some different act for which liability is asserted." (*Wilson v. Cable News Network, Inc.* (2019) 7 Cal.5th 871, 884). "Assertions that are 'merely incidental' or 'collateral' are not subject to section 425.16. Allegations of protected activity that merely provide context, without supporting a claim for recovery, cannot be stricken under the anti-SLAPP statute." (*Baral*, 1 Cal.5th at 394 [cleaned up]; see also *Newport Harbor Offices v. Morris Cerullo World Evangelism* (2018) 23 Cal.App.5th 28, 43.) While the California Supreme Court has rejected the "gravamen" test to evaluate anti-SLAPP motions directed to an entire cause of action or complaint, the court did not disprove of its use when used to determine the acts on which liability is based or whether protected activity allegations are incidental

		to background. (*Bonni v. St. Joseph Health System* (2021) 11 Cal.5th 995, 1011-1012.) *CKE Restaurants, Inc. v. Moore* (2008) 159 Cal.App.4th 262, 270-271, provides instructive examples of when a lawsuit filed after a protected activity arising from the protected activity. *CKE* cites to *Equilon Enterprises v. Consumer Cause, Inc.* (2002) 29 Cal.4th 53 and *City of Cotati v. Cashman* (2002) 29 Cal.4th 69 as examples. > *Equilon* is particularly instructive. There, a consumer group, Consumer Cause, Inc., filed a Proposition 65 notice against the successor-in-interest to two oil companies. It alleged that the oil companies had polluted the groundwater by discharging benzene, toluene and lead into the soil. Rather than respond to the notice, Equilon filed an action for declaratory and injunctive relief. It claimed that the notice had not been properly served and sought a declaration that the notice failed to comply with the California Code of Regulations by not describing the toxic discharges with sufficient particularity. It also sought an injunction barring Consumer Cause from filing a Proposition 65 enforcement action. Consumer Cause moved to strike Equilon's complaint under the anti-SLAPP statute. The court concluded that the pleadings and affidavits established that Equilon's actions arose from Consumer Cause's act of filing a Proposition 65 notice and was therefore subject to a motion to strike. (*Equilon, supra,* 29 Cal.4th 53, 67.) *Cotati* illustrates the opposite situation—a lawsuit was filed after the protected activity took place, yet did not arise from that activity. In *Cotati,* a group of mobilehome park owners challenged the constitutionality of a rent stabilization ordinance. The owners filed a declaratory relief action in federal court alleging that the city's ordinance constituted a taking. The city claimed the ordinance was constitutional and filed a declaratory relief action in state court in an attempt to gain a more favorable forum in which to litigate the matter. The mobilehome park owners moved to strike the city's complaint, alleging that the city's action constituted a SLAPP suit. The Supreme Court disagreed, concluding that both actions concerned constitutionality of the ordinance. The city's complaint referred to the validity of the ordinance, but made no reference to the federal action itself, and therefore was not subject to a motion to strike. (*Cotati, supra,* 29 Cal.4th 69, 79-80.) (*CKE, supra*, 159 Cal.App.4th 262, 270-271.) Plaintiffs' lawsuit is similar to the claims in *Cotati* and dissimilar to the claims in *Equilon* and *CKE*. Similar to *Cotati*, both lawsuits relate to the same subject matter, the enforceability of certain contract provisions. Unlike *Equilon* and *CKE* Plaintiffs did not quote Defendants' lawsuits, they merely reference them as evidence of a controversy; they do not challenge the permissibility of Defendants' act of filing their lawsuits;

		nor do they arise wholly from Defendants filing their lawsuit. Thus, Defendants have failed to establish the first prong and their motion fails. <u>Attorney's Fees</u> "If the court finds that a special motion to strike is frivolous or is solely intended to cause unnecessary delay, the court shall award costs and reasonable attorney's fees to a plaintiff prevailing on the motion, pursuant to Section 128.5." (Code Civ. Proc., § 425.16(c)(1).) The Court finds Defendants had a good faith argument that their claims were more similar to *Equilon* and *CKE* than *Cotati* and, thus, the Motion was not frivolous or filed solely for the purpose of delay. The delay in discovery was incidental or merely one factor contributing to the filing of the Motion. Therefore, Plaintiffs' request attorney's fees is denied.
7	***25-01524396*** ***Livers vs. Beamer***	**Motion to Set Aside/Vacate Default** Defendant Tyson Beamer's Motion to Set Aside Default is MOOT in light of this Court signing the parties' stipulation to set aside default.
8	***20-01146344*** ***Mena vs. 3711 West Balboa Blvd Homeowners' Association***	**Motion for Attorney Fees** Plaintiff's Motion for Post-Judgment Attorney Fees and Costs on Appeal against Defendant Christopher P. Schroeder is GRANTED. <u>Procedural History:</u> This Court entered judgment on the arbitration award in favor of Plaintiff against Defendant Schroeder on 1/30/24. The judgment included monetary damages and non-monetary relief and provided interest of 10% per annum would accrue until the judgment was paid. Defendant appealed and the appellate court issued an opinion affirming the judgment on 12/4/25. The appellate court stated Plaintiff is "to recover her costs (including attorney fees) incurred on appeal. The trial court is directed to award [Plaintiff] *all* reasonable fees and costs on appeal." (Opinion, p. 19, emphasis in original.) The opinion directed this Court to "award [Plaintiff] all reasonable attorney fees and costs incurred on appeal including but not limited to those fees incurred responding to this court's order regarding sanctions, and those fees incurred after this opinion is filed." (Id. at p. 18.) Plaintiff now moves for an order that Defendant Schroeder pay (1) attorney fees on appeal totaling $49,648.50, (2) costs of $729.25, (3) post-judgment interest of $35,997.76, and (4) fees incurred in related bankruptcy proceedings totaling $41,101.00. <u>Legal Standard:</u> A party seeking an award of fees has the burden of establishing entitlement to an award, and of documenting the appropriate hours

		spent, and the hourly rates. (*569 E. County Blvd. LLC v Backcountry Against the Dump, Inc.* (2016) 6 Cal.App.5th 426, 432; *Lunada Biomedical v Nunez (*2014) 230 Cal.App.4th 459, 486.) In challenging an attorney's fees request, the burden falls upon the challenging party to point to specific items challenged, with arguments and citation to evidence. General claims that fees are excessive insufficient. (*Premier Medical Management Systems, Inc. v. California Insurance Guarantee Association* (2008) 163 Cal.App.4th 550, 564.) <u>Fees and Costs on Appeal:</u> The Court of Appeal directed this Court to award Plaintiff "*all*" her reasonable fees incurred responding to Defendant Schroeder's appeal, which the appellate court found was frivolous and sanctionable. Plaintiff's counsel declares their firm spent 100.3 hours at $495/hour defending the judgment and responding to Defendant's appeal. (Clark Decl., ¶ 4.) Counsel's billing records are attached as Exhibit F. The billing records contain extensive detail regarding the work performed and do not reflect excessive block billing. They also reflect counsel's reduction of hours for certain work. Defendant's objections to counsel's billing as duplicative, block billing, and non-compensable are not persuasive. A party cannot litigate tenaciously and then be heard to complain about the time incurred. (*Peak-Las Positas Partners v. Bollag* (2009) 172 Cal.App.4th 101, 114.) Here, Defendant chose to pursue a frivolous appeal and Plaintiff's counsel has demonstrated the request for attorney fees is based on reasonably detailed billing related to responding to the appeal at rates which are reasonable in the Orange County legal community for similar work. Defendant does not object to Plaintiff's costs on appeal. The motion is granted as to Plaintiff's fees on appeal in the amount of $49,648.50 plus costs of $729.25. <u>Bankruptcy Fees:</u> Plaintiff seeks to recover fees incurred in Defendant Schroeder's Chapter 13 bankruptcy case, which was dismissed after six months. (Clark Decl., ¶ 6.) Plaintiff's counsel declares this work was necessary to protect the judgment from discharge. (Clark Decl., ¶¶ 6-7, Exs. G & H.) Bankruptcy counsel billed between $390-$650/hour. The Bankruptcy Court's order and notice of dismissal stated in part, "Based on debtor's request, IT IS ORDERED THAT: (1) debtor's bankruptcy case is dismissed; and (2) the court retains jurisdiction on all issues involving sanctions, any bar against being a debtor in bankruptcy, all issues arising under Bankruptcy Code §§ 105, 109(g), 110, 329, 349, and 362, and to any additional extent provided by law." (Plaintiff's Ex. G.)

Defendant objects that Plaintiff has not cited legal authority allowing this Court to award bankruptcy fees or shown that such fees were reasonably incurred enforcing the judgment.

In reply, Plaintiff further explains that Defendant filed bankruptcy proceedings which stayed the appeal. Her bankruptcy counsel's work was necessary to ensure Defendant could not avoid the lien for judgment, and counsel's work resulted in Defendant's dismissal of the bankruptcy proceeding.

Plaintiff cites Code of Civil Procedure section 685.040, which provides,

"The judgment creditor is entitled to the reasonable and necessary costs of enforcing a judgment. Attorney's fees incurred in enforcing a judgment are not included in costs collectible under this title unless otherwise provided by law. Attorney's fees incurred in enforcing a judgment are included as costs collectible under this title if the underlying judgment includes an award of attorney's fees to the judgment creditor pursuant to subparagraph (A) of paragraph (10) of subdivision (a) of Section 1033.5."

Plaintiff also cites *Jaffe v. Pacelli* (2008) 165 Cal.App.4th 927 (*Jaffe*). (Reply, p. 4.) In *Jaffe*, the judgment debtor attempted to discharge the judgment debt in bankruptcy court. (*Id*. at 929.) The bankruptcy case was dismissed as a result of the efforts taken by the judgment creditor…" (*Ibid*.) The appellate court stated, "we hold that Jaffe's efforts taken in the bankruptcy court, and in related proceedings, were incurred to enforce the superior court judgment. Thus, Code of Civil Procedure section 685.040 (Section 685.040) entitles Jaffe to a postjudgment order awarding him compensation for the attorney fees and costs expended in those proceedings." (*Ibid*.)

Plaintiff has shown that under *Jaffe* and section 685.040, she is entitled to recover bankruptcy counsel's fees which were required to avoid discharge of the judgment in bankruptcy proceedings. Plaintiff's bankruptcy counsel's hourly rates were within a reasonable range and their billing records are reasonably detailed to demonstrate the bills were necessarily incurred defending the judgment. (Ex. H.)

Again, Defendant cannot make meritless efforts to avoid the judgment in bankruptcy court and then complain when Plaintiff seeks compensation for fees incurred responding to such tactics.

Therefore, Plaintiff's request for attorney fees incurred in the related bankruptcy proceeding is granted in the amount of $41,101.00.

<u>Post-Judgment Interest:</u>

Plaintiff seeks an award of post-judgment interest totaling $35,997.76 pursuant to the judgment entered on 1/30/24, which stated Plaintiff shall recover interest at 10% per annum from the date of judgment until paid.

		Defendant's opposition does not respond to this request. Plaintiff is entitled to collect post-judgment interest pursuant to the judgment, which will continue to accrue until paid.
10	***25-01498068*** ***Miller vs. 1***	**1) Motion to Compel Deposition (Oral or Written)** **2) Motion to Compel Deposition (Oral or Written)** Plaintiff James Miller's motion to compel third-party witnesses, Joe Collinsworth and Christine Collinsworth, to comply with the Deposition Subpoena for Personal Appearance and Production of Documents and Things is CONTINUED to _________. California Rules of Court, rule 3.1346 states: "A written notice and all moving papers supporting a motion to compel an answer to a deposition question or to compel production of a document or tangible thing from a nonparty deponent must be personally served on the nonparty deponent unless the nonparty deponent agrees to accept service by mail or electronic service at an address or electronic service address specified on the deposition record." Here, Plaintiff has failed to show that the moving papers were personally served on Joe Collinsworth and Christine Collinsworth as required by California Rules of Court, rule 3.1346. The Proof of Service attached to the Motion shows that the moving papers were served on Joe and Christine Collinsworth by mail. Plaintiff has not shown that Joe and Christine Collinsworth agreed to accept service by mail, accordingly, service was insufficient pursuant to rule 3.1346. Based on the foregoing, the Motion is CONTINUED to _______. Plaintiff is ORDERED to personally serve the moving papers on Joe and Christine Collinsworth no later than 16 court days before the continued hearing and file a proof of service no later than 5 court days prior to the continued hearing. Plaintiff to give notice.
12	***25-01460537*** ***Palomino vs. FCA US, LLC***	**Motion to Compel Production** Plaintiff Eduardo Palomino's Motion to Compel Further Compliance with Code of Civil Procedure section 871.26 is DENIED as moot. The parties were ordered to file additional papers addressing any remaining issues related to the Motion after meet and conferring. No further papers were filed. Thus, the Motion is moot.
15	***24-01372004*** ***The Irvine Company LLC vs. The Mugs Alton Irvine Inc.***	**Motion to Set Aside/Vacate Default and Judgment** The motion of defendant Kyunghee Noh moves for an order to set aside and vacate the default and default judgment entered against her is GRANTED. <u>Discussion</u>. Defendant Kyunghee Noh moves for an order: (1) vacating the entry of default and default judgment against her; (2) quashing enforcement of the judgment and abstract of judgment against her; (3)

granting leave to file the proposed answer that is submitted with the motion; and (4) staying enforcement pending determination of the instant motion. Plaintiff The Irvine Company, LLC, opposes the motion.

Default was entered against moving defendant and the three other co-defendants on June 20, 2025 (ROA 60) and default judgment was entered on December 11, 2025 (ROA 84). After entry of default, the defendant cannot file an answer or any motion other than a motion for relief from default. In re Marriage of Nurie (2009) 176 Cal.App.4th 478, 495, fn. 16.
Defendant contends that she was not properly served with the summons and complaint and the Court never acquired personal jurisdiction over her. She therefore contends that the default and default judgment are void and should be set aside under Code Civ. Proc. § 473(d). Alternatively, she contends that the default and default judgment should be set aside under Code Civ. Proc. § 473.5 because she did not have notice of the action in time to defend against it. She contends that she did not know about the action until she learned of a judgment lien against her residence in La Habra.

Plaintiff contends that moving defendant was properly served through substituted service by a registered process server. Plaintiff also contends that moving defendant was avoiding service and that she lacks credibility.

With regard to moving defendant's first argument, when a defendant challenges the court's personal jurisdiction on the ground of improper service of process the burden is on the plaintiff to prove the existence of jurisdiction by proving, inter alia, the facts requisite to an effective service. Summers v. McClanahan (2009) 140 Cal.App.4th 403, 413. See also American Express Centurion Bank v. Zara (2011) 199 Cal.App.4th 383, 387.

The proof of service filed by plaintiff on April 14, 2025 purports to show that moving defendant was served with the summons on first amended complaint and first amended complaint by substituted service on April 8, 2025. (ROA 58.) The proof of service indicates that the process server served moving defendant at her residence on Torrey Pines Court in La Habra by leaving the documents with a competent member of the household who was at least 18 years old and by thereafter mailing copies of the documents to her at the same address.

In the declaration of diligence filed with the POS, the process server declares that unsuccessful attempts to serve the moving defendant were made everyday between March 25, 2025 and March 29, 2025. The process server further declares that on April 8, 2025, the documents were left with a male adult who answered the door and would not divulge his name. The process server declares that the documents were tossed into the residence before the man who answered the door slammed it shut.

		Plaintiff offers absolutely no evidence that moving defendant actually resided at the address in La Habra where the documents were left and mailed to. The copy of the guaranty submitted by responding with the opposition does not show an address for moving defendant; it merely gives an address in Chino for notices to the guarantors. Thus, notwithstanding the declaration of the process server submitted with the proof of service and the declaration of a representative of plaintiff's property manager submitted with the opposition, plaintiff has not shown that service of the moving defendant was proper and effective and that the Court acquired personal jurisdiction over the moving defendant. The resulting default and default judgment against her are void.
16	***26-01538511*** ***Yazdani vs. Tesla, Inc.***	**Motion to Compel Arbitration** The motion of defendant Tesla, Inc. for an order compelling plaintiff Sohrab Yazdani to arbitrate the claims in this matter and staying the court action pending the outcome of the arbitration is GRANTED. Under both federal and state law, the threshold question presented by a petition to compel arbitration is whether there is an agreement to arbitrate. Herzog v. Superior Court (2024) 101 Cal.App.5th 1280, 1293. This threshold inquiry stems from the basic premise that arbitration is consensual in nature. B.D. v. Blizzard Entertainment, Inc. (2022) 76 Cal.App.5th 931, 943. Thus, while California public policy favors arbitration, there is no policy compelling persons to accept arbitration of controversies that they have not agreed to arbitrate. Ibid. General principles of contract law determine whether the parties have entered into a binding agreement to arbitrate. B.D. v. Blizzard Entertainment, Inc., supra, 76 Cal.App.5th at p. 943. Mutual assent, or consent, of the parties is essential to the existence of a contract and consent is not mutual unless the parties all agree upon the same thing in the same sense. Ibid. Mutual assent is determined under an objective standard applied to the outward manifestations or expressions of the parties, i.e., the reasonable meaning of their words and acts, and not their unexpressed intentions or understandings. Ibid. If an offeree objectively manifests assent to an agreement, the offeree cannot avoid a specific provision of that agreement on the ground the offeree did not actually read it. Ibid. These consent principles apply with equal force to arbitration provisions contained in contracts purportedly formed over the Internet. B.D. v. Blizzard Entertainment, Inc., supra, 76 Cal.App.5th at p. 943. While internet commerce has exposed courts to many new situations, it has not fundamentally changed the requirement that mutual manifestation of assent, whether by written or spoken word or by conduct, is the touchstone of contract. Ibid. In the world of paper contracting, the outward manifestation of assent to the same thing by both parties is often readily established by the offeree's receipt of the physical contract. B.D. v. Blizzard Entertainment,

		Inc., supra, 76 Cal.App.5th at pp. 943-944. By contrast, when transactions occur over the internet, there is no face-to-face contact and the consumer is not typically provided a physical copy of the contractual terms. Id. at p. 944. In that context, and in the absence of actual notice, a manifestation of assent may be inferred from the consumer's actions on the website—including, for example, checking boxes and clicking buttons—but any such action must indicate the parties' assent to the same thing, which occurs only when the website puts the consumer on constructive notice of the contractual terms. Ibid. Thus, to establish mutual assent for the valid formation of an internet contract, a provider must first establish the contractual terms were presented to the consumer in a manner that made it apparent the consumer was assenting to those very terms when checking a box or clicking on a button. Ibid. Defendant contends that, on or about December 9, 2021, plaintiff placed an order for a 2022 Tesla Model 3 from defendant Tesla. It contends that, in doing so, plaintiff executed an order agreement with it and agreed to be bound by its terms and conditions, including an agreement to arbitrate. In support of the motion, defendant submits the declaration of Raymond Kim. (ROA 13.) In his declaration, Mr. Kim declares that he is defendant's Manager for Business Resolutions and is familiar with the service and sales of Tesla vehicles as well as the related record-keeping procedures. Mr. Kim declares that he is submitting a copy of the order agreement that plaintiff executed on-line as Exhibit 1. The provision for arbitration is on the second page of the agreement. Among other things, it provides that if a concern or dispute by a consumer is not resolved within 60 days' of written notice of that concern or dispute is given, then the consumer "agree[s] that any dispute arising out of or relating to any aspect of the relationship between [the consumer] and Tesla will not be decided by a judge or jury but instead by a single arbitrator in an arbitration administered by the American Arbitration Association (AAA) under its Consumer Arbitration Rules." It provides that "[t]his includes claims arising before this Agreement, such as claims related to statements about our products." Defendant has therefore demonstrated that an agreement to arbitrate exists between the parties and encompasses the claims in the complaint, which relate to the vehicle purchased by plaintiff. Plaintiff contends that Court should not enforce the arbitration agreement because it is unconscionable. However, contrary to plaintiff's contention that the agreement is one of adhesion, the agreement specifically provides that a consumer may opt out of the agreement to arbitrate by giving defendant written notice within 30 days of signing the agreement. It also provides that, in lieu of arbitrating, the consumer may take an individual dispute to small claims court.

		Additionally, the arbitration agreement provides that defendant will pay the fees for the arbitration and that the arbitration is to be held in the city or county of the consumer's residence.
17	***26-01544858*** ***Roknian vs. Palmier Hennessey & Lifer LLP***	**Motion to Compel Arbitration** Defendants' Motion to Compel Arbitration filed by is GRANTED. Defendants Palmier Hennessey & Lifer LP ("PHL"), Patrick A. Hennessey, and Anish J. Banker move to compel arbitration and stay, or in the alternative, dismiss Plaintiffs' action pursuant to California Code of Civil Procedure sections 1281 and 1281.2. **Legal Standard** "A written agreement to submit to arbitration an existing controversy or a controversy thereafter arising is valid, enforceable and irrevocable, save upon such grounds as exist for the revocation of any contract." (Code Civ. Proc., § 1281.) A party to an arbitration agreement may move to compel arbitration and stay the action if another party to the agreement refuses to arbitrate. (Code Civ. Proc., §§ 1281.2, 1281.4.) The moving party must prove by a preponderance of the evidence (1) the existence of a written agreement to arbitrate; and (2) one or more of the claims at issue are covered by that agreement. (Code Civ. Proc., § 1281.2; *Villacreses v. Molinari* (2005) 132 Cal.App.4th 1223, 1230.) If the moving party meets this burden, the burden shifts to the resisting party to prove by a preponderance of evidence a defense to enforcement of the agreement, such as waiver or grounds for revocation. (Code Civ. Proc., § 1281.2; *Villacreses, supra,* 132 Cal.App.4th at p. 1230.) The motion may be filed in lieu of filing an answer to a complaint. (Code Civ. Proc., § 1281.7.) If the motion is denied, the moving defendant has 15 days after any denial of the petition to plead to the complaint. (Ibid.) **Existence of Arbitration Agreement** The court determines the existence of an agreement to arbitrate in a summary process. (*Gamboa v. Northeast Community Clinic* (2021) 72 Cal.App.5th 158, 164.) The trial court sits as a trier of fact, weighing all the affidavits, declarations, and other documentary evidence, as well as oral testimony received at the court's discretion, to reach a final determination. (*Ibid*.) Courts use a "three-step burden-shifting process" to determine whether an agreement to arbitrate exists: > "First, the party petitioning to compel arbitration must state the provisions of the written agreement and the paragraph that provides for arbitration. The provisions must be stated verbatim or a copy must be physically or electronically attached to the petition and incorporated by reference. Signatures on the

> arbitration agreement need not be authenticated at this initial stage.
>
> "If the petitioner meets their initial burden, the burden of production shifts to the party opposing the petition to compel arbitration, who must offer admissible evidence creating a factual dispute as to the agreement's existence. When the dispute centers on the authenticity of signatures, the opponent need not *prove* that his or her purported signature is not authentic, but must submit sufficient evidence to create a factual dispute and shift the burden back to the arbitration proponent, who retains the ultimate burden of proving, by a preponderance of the evidence, the authenticity of the signature."

(*West v. Solar Mosaic LLC* (2024) 105 Cal.App.5th 985, 992 [cleaned up; emphasis in original].)

Here, Defendants seek to compel arbitration pursuant to an arbitration provision contained in a Fee Agreement. Defendants emailed the Fee Agreement to both Plaintiffs on 4/18/25. (Leifer Decl., ¶ 5; Mollis Decl., ¶ 6, Ex. 3.) Hamid Roknian signed the Fee Agreement at a meeting with Defendants on 4/21/25. (Leifer Decl., ¶¶ 5-6; see also H. Roknian Decl., ¶ 16.) Rozita Roknian returned the signed Fee Agreement on 4/23/25. (Leifer Decl., ¶ 7, see also R. Roknian Decl., ¶ 13, 15.) Both plaintiffs initialed directly under the arbitration provision. (Leifer Decl., Ex. A, ¶ 12, p. 4.)

The arbitration provision provides:

> **Any dispute** arising out of or relating to this Agreement or **in connection with the provision of legal services to Clients by the Firm including without limitation, any claim for** breach of contract, **professional negligence/malpractice**, breach of fiduciary duty, misrepresentation, fraud, disputes regarding attorneys' fees and/or costs charged under this Agreement **shall be resolved by binding arbitration** in the County of Orange, State of California before, and in accordance with the rules of, the Judicial Arbitration and Mediation Service ("JAMS"). The Firm and Clients shall bear their respective costs, expenses, attorneys' fees and an equal share (50% Firm and 50% Clients) of the arbitrator's and administrative fees in connection with such binding arbitration. **By signing this Agreement, Clients understand and acknowledge that this arbitration provision results in a waiver of Clients' right to a court or jury trial for any and all such claims. In addition, Clients understand and acknowledge that Clients are waiving any right to appeal and may be giving up certain rights to discovery regarding such Claims**. Clients acknowledge that before signing this Agreement and agreeing to binding arbitration, Clients are entitled, and has been given a reasonable opportunity, to seek the advice of independent counsel. The venue for any post-arbitration award to

		confirm, correct or vacate the arbitration award shall be in the Orange County Superior Court, Central Justice Center. (Leifer Decl., ¶ 7, Ex. A, ¶ 12 [emphasis added].) In addition to attaching the Fee Agreement to the motion, Defendants also set out the above terms verbatim in the motion. Thus, Defendants have met their initial burden. Plaintiffs do not dispute initialing and signing the arbitration provision and Fee Agreement. (Hamid Roknian Decl., ¶¶17-18, 28; Rozita Roknian Decl., ¶¶ 13, 15.) Instead, they dispute that they knowingly and mutually assented to the arbitration provision. Plaintiffs contend that Defendants represented that the arbitration language was required by the State Bar and had Defendants explained the true nature and consequences of the arbitration provision, Plaintiffs would not have agreed to arbitrate disputes with their attorneys. According to Plaintiffs, because Defendants are attorneys, they had a fiduciary obligation to ensure Plaintiffs understood the consequences of signing the arbitration provision. These arguments lack merit. First, prior to signing the Fee Agreement, there is no fiduciary relationship: “The confidential relationship between attorney and client does not arise until the contract between them is made and that in agreeing upon its terms the parties deal at arm's length.” (*Lee v. Gump* (1936) 14 Cal.App.2d 729, 733, citing *Cooley v. Miller & Lux* (1906) 156 Cal. 510, 524.) Second, when Plaintiffs initialed the arbitration provision, they acknowledged they were “entitled, and ha[d] been given a reasonable opportunity, to seek the advice of independent counsel.” (Leifer Decl., ¶ 7, Ex. A, ¶ 12.) While Hamid Roknian asserts that neither he nor his wife received or reviewed the Fee Agreement before 4/21/25 (H. Roknian, ¶¶ 10-11), Rozita Roknian does not deny receiving the Fee Agreement on 4/18/25 or reviewing it prior to signing it (see, generally, R. Roknian Decl.). Even if Hamid Roknian first received the Fee Agreement at the 4/21/25 meeting, he was free to decline signing the agreement and seek advice of independent counsel. The impending deposition was not until 5/6/25. Notably, Plaintiffs were still represented by their prior counsel until 4/24/25. (See Leifer Decl. ¶ 9, Exs. B and C [Substitutions of Attorney signed by Plaintiffs on 4/24/25]; see also H. Roknian Decl., ¶ 23.) Second, the arbitration provision is written in plain language and clearly states the consequences of agreeing to arbitrate. Nowhere in their declarations do Plaintiffs state they did not read the Fee Agreement before signing it. In any event, failure to read or understand the arbitration clause is generally no defense. (See *Madden v. Kaiser Foundation Hospitals* (1976) 17 Cal.3d 699, 710.) Third, merely stating the State Bar required the arbitration language neither misrepresented nor hid the nature or consequences of the

arbitration provision. (See *Rosenthal v. Great Western Fin. Securities Corp*. (1996) 14 Cal.4th 394, 415 [mutual assent is lacking where there is fraud in the inception or execution of the agreement, i.e. "the promisor is deceived as to the nature of his act, and actually does not know what he is signing, or does not intend to enter into a contract at all"].).

"Mutual assent is determined under an objective standard applied to the outward manifestations or expressions of the parties, i.e., the reasonable meaning of their words and acts, and not their unexpressed intentions or understandings. (*Sellers v. JustAnswer LLC* (2021) 73 Cal.App.5th 444, 460.) "In the world of paper contracting, the outward manifestation of assent to the *same thing* by both parties is often readily established by the offeree's receipt of the physical contract." (*Id*. at p. 61 [emphasis in original].) Here, Plaintiffs' outward manifestation of mutual assent consisted of initialing the arbitration provision and signing the Fee Agreement.

Accordingly, Defendants have established the existence of an arbitration agreement.

Delegation

Plaintiffs argue the arbitration agreement is both procedurally and substantively unconscionable. However, arguments regarding the validity and scope of the arbitration agreement must be decided by the arbitrator, not this Court.

The "validity of an arbitration clause itself is a matter for the arbitrator where the agreement so provides." (*Monex Deposit Co. v. Gilliam* (C.D. Cal. 2009) 616 F.Supp.2d 1023, 1026; *Dream Theater, Inc. v. Dream Theater* (2004) 124 Cal.App.4th 547, 551, 557 ["The issue of who should decide arbitrability turns on what their parties agreed in their contract" and "We conclude…that where the Contract provides for arbitration in conformance with rules that specify the arbitrator will decide the scope of his or her own jurisdiction, the parties' intent is clear and unmistakable, even without a recital in the contract that the arbitrator will decide any dispute over arbitrability"].)

Here, the arbitration provision provides that disputes "shall be resolved by binding arbitration . . . before and in accordance with the rules of the Judicial Arbitration and Mediation Service ("JAMS")." (Leifer Decl., ¶ 7, Ex. A, ¶ 12.) In turn, Rule 11 of the JAMS Rules of Commercial Arbitration provides: "Jurisdictional and arbitrability disputes, including disputes over the formation, existence, validity, interpretation or scope of the agreement under which Arbitration is sought, and who are proper Parties to the Arbitration, shall be submitted to and ruled on by the Arbitrator. The Arbitrator has the authority to determine jurisdiction and arbitrability issues as a preliminary matter." (Leifer Decl. Ex. D [JAMS Rule 11, subd. (b)].) Thus, the parties clearly and unmistakably delegated such issues to the arbitrator.

		Importantly, Plaintiffs have already consented to JAMS' jurisdiction. On 1/27/26, PHL filed a Demand for Arbitration with JAMS regarding a fee dispute. (Leifer Decl., ¶ 11.) On 6/15/26, Plaintiffs filed a Counterclaim with JAMS against Defendants alleging the same professional negligence and fraud claims that they allege in this action. (Mollis Decl., ¶ 2, Ex. 1.) The motion is GRANTED. This action is stayed pending the outcome of arbitration.